

File No.: EXP202304144

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On February 2, 2023, a complaint was filed with registration number REGAGE23e00006741954 before the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the respondent or Vodafone). The reasons for the complaint are as follows:

The complainant states that he has a contract with Vodafone that includes three mobile lines and one landline. He claims to have requested on numerous occasions, through different means (written communication, chat, email, and by phone), that no calls be made to the phones of his wife and son, and that they only communicate with him through his own phone number.

Despite confirmation that the restriction is activated in Vodafone's system, he asserts that calls continued to be made to the other numbers. Between January 17 and 25, he claims to have received 13 calls to his wife's phone and 5 to his son's.

He indicates that on February 1, after sending an email on January 31 and making a phone call, Vodafone contacted him again through the number 22123, at which point he again requested that they not call the other numbers and was informed that, according to the system, there was no restriction on calls as requested.

He notes that on May 6, a verbal lawsuit against Vodafone was admitted in Court No. XX in Madrid, declaring Vodafone in default on July 20, and a judgment was issued on October 20 in his favor, condemning Vodafone to pay €325.79 plus interest and legal costs.

He concludes by stating that since January 30, 2023, his wife's phone has received a total of 14 calls (5 on January 30, 4 on January 31, and 5 on February 1). He asserts that these calls may be related to the lawsuit and reiterates his frustration, as he has repeatedly requested that calls only be made to his own number, but this decision is not being respected.

Along with the complaint, he submits the following documents:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/5

1. Judgment from the Court of First Instance No. XX of Madrid dated October 20, 2022.

2. Emails sent to Vodafone requesting the cessation of incoming calls, where the recipient phone number of these calls is not listed.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on April 10, 2023, as evidenced by the acknowledgment of receipt in the file.

On July 8, 2023, a response was received by this Agency indicating: "After the checks carried out, it has been confirmed that the complainant indeed conveyed his request through different channels, although it is true that none of them were the main channels for managing rights in data protection matters enabled by my represented entity, which hindered the proper management of this request in a timely manner.

However, once the requests were received from the complainant, on February 1, 2023, his right of opposition was managed, and it was marked in Vodafone's internal systems his revocation of consent

to receive commercial communications.

In any case, after receiving this request, an investigation was conducted into the origin of the communications indicated by the complainant. To this end, it has been confirmed that this communication originated from commercial campaigns carried out on behalf of this entity, and as part of which certain customer numbers that met the parameters and objectives of the campaign were contacted.”

THIRD: On May 2, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

I

Competence

According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/5

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions of Title VIII and its implementing regulations shall apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the competencies attributed to it by other laws."

II

Article 66.1.b) of the General Telecommunications Law (LGTel) Law 11/2022, of June 28, provides as follows:

“Article 66. Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories.

1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of publicly available interpersonal communication services based on numbering shall have the following rights:

(...)

b) not to receive unwanted calls for commercial communication purposes, unless there is prior consent from the user themselves to receive such commercial communications or unless the communication can be supported by another legal basis as provided in Article 6.1 of Regulation (EU) 2016/679 on the processing of personal data.

(...)”

In the case examined, the complainant indicates that Vodafone continues to make calls not only to their phone number but also to that of their wife and child, and despite notifying Vodafone of this circumstance, they continue to call them. However, the complainant in the documentation submitted along with the complaint does not provide evidence of the specific numbers receiving the calls, nor does it appear that such calls have a commercial nature.

On the other hand, it is necessary to highlight that, as a result of the transfer of the complaint and request for information by the AEPD, the respondent party states that, once the requests were received from the complainant, on February 1, 2023, their right to object was processed and their revocation of consent to receive commercial communications was marked in Vodafone's internal systems.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/5

As previously indicated, Vodafone acknowledges that it has made calls to the complainant for advertising purposes. Conversely, it has not been possible to verify that the calls had a purpose other than that indicated by the entity.

In this regard, according to the applicable regulations and based on Law 11/2022, of June 28, the General Telecommunications Law currently recognizes in Article 66.1 b) of said regulation the right of end users not to receive unwanted calls for commercial communication purposes. This provision came into effect with full effect one year after the publication of the law in the Official State Gazette, as provided in the sixth final provision.

In their complaint, the complainant states that they received various calls until February 1, 2023, which makes it reasonable to assume that all of them occurred before the entry into force of the aforementioned Article 66.1b). During the period prior to the entry into force of this regulation, users had the right to oppose receiving such advertising communications and to be informed of this right, as established by the then-current regulations.

In this particular case, on February 1, 2023, Vodafone stated that it had proceeded to register in Vodafone's internal systems their opposition to receiving commercial communications, thus respecting the complainant's right to object in accordance with the regulations in force at that time. Consequently, the calls made before the entry into force of the right contemplated in Article 66.1.b) do not constitute a violation as long as the complainant was granted their right to object, which, as stated by Vodafone, has been fulfilled in this case.

Therefore, taking into account the regulations in force at the time of the events, it can be affirmed that no legal provision in force at the time of the events has been violated.

III

Conclusion

Therefore, based on the aforementioned paragraphs, no evidence has been found to substantiate the existence of a violation within the jurisdiction of the Spanish Data Protection Agency.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Data Protection Agency,

By the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U. with NIF A80907397 and to the complainant.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/5

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the

Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es